

Public Redacted Reply Brief of Open Grid Archive

Filed: May 4, 2026 **Synthetic docket:** SYN-CA4-26-CV-4106 **Counsel:** Tamsin Roe and Leo Marr, fictional counsel for Open Grid Archive

The Remaining Disagreement Is Narrow

DOE's response confirms substantial common ground. The search, twelve-record universe, 200 source pages, and law-enforcement threshold are not disputed. Open Grid also accepts 7(E) protection for adequately explained nonpublic trigger relationships, response ordering, escalation structure, and implementation detail within the operational decision trees.

The appeal therefore does not require the Court to choose between exposing a protective method and accepting every agency conclusion. It asks whether DOE carried its burden for the fields outside that supported core, whether it conducted a sufficiently reasoned segregability review, and whether the district court restricted judicial records on particular findings.

DOE repeatedly proposes a limited remand if the Court finds a deficiency. That is substantially the relief Open Grid seeks on categorical 7(F), segregability, and sealing. The important qualification is that the Court should vacate the unsupported determinations rather than leave them as presumptively valid. Remand can protect the affirmed 7(E) information, permit a new agency showing, and require the district court to distinguish source-record withholding from judicial-record access.

Context Does Not Create a Presumption

DOE correctly observes that structural context may itself reveal protected information. Open Grid's opening brief already acknowledged that point. The dispute is whether the declarations show that consequence for each retained administrative fragment rather than simply invoking proximity to a decision framework.

A heading can reveal whether [REDACTED—FICTIONAL DECISION CONDITION] governs [REDACTED—FICTIONAL RESPONSE ORDER]; if the record establishes that effect, 7(E) applies. A heading can also announce a publication section without exposing any relationship. The same distinction holds for an edition entry beside [REDACTED—FICTIONAL ESCALATION VALUE]. The agency must classify the actual use.

Grey and PEER do not transform context into an exemption. They support protection where the described information fits 7(E)'s clauses and the asserted consequence is reasonable. Open Grid asks the Court to enforce that connection. Its requested remand would let DOE retain any contextual deletion it can adequately support and release only matter that does not communicate the protected structure.

Foreseeable Harm Must Be Information Specific

DOE says it considered foreseeable harm, but several entries merely state that disclosure would undermine protective work. Section 552(a)(8)(A) requires a reasonable forecast tied to the interest protected by the applicable exemption. Repeating the collection's mission does not show what a neutral sentence would reveal.

For the operational decision-tree relationships, the agency's logic is complete: disclosure would expose how a concealed condition and ordered response fit together, creating the claimed circumvention risk. For generic ownership, revision, or coordination prose, the account often lacks the middle step. The reader cannot tell whether release exposes structure, identifies an individual-connected function, or simply adds administrative context.

DOE worries that additional description could reveal the protected content. A useful explanation need not provide a value. It can identify the record family, local function, invoked clause, and predicted consequence. Rein permits functional proof but does not relieve the agency of proof. Where the current entry stops short, vacatur and remand are the proper means to obtain a lawful determination without ordering disclosure.

Seven(F) Still Lacks the Necessary Connection

The response describes selected fields as individual-connected but does not resolve the categorical defect. The public notices [REDACTED—FICTIONAL DUTY ROLE], [REDACTED—FICTIONAL SAFETY REFERENCE], and [REDACTED—FICTIONAL CONTACT CHANNEL] appear across materially different settings. A declaration must explain why the particular category membership could reasonably be expected to endanger an individual.

Open Grid does not demand a public name, address, or authentic channel. EPIC allows protection through a nonidentifying explanation. A declaration can state that disclosure would expose an individual's assignment or access relationship without identifying the person. The difficulty is that DOE often recites those possibilities for the field type generally rather than explaining why they characterize every retained instance.

The agency's willingness to accept a limited remand recognizes that gap. The Court should vacate categorical 7(F) and allow DOE to support narrower claims. It should also state that no remand release may override information independently sustained under 7(E). That disposition protects individual safety while preventing a label from serving as conclusive proof.

The Vaughn Account Does Not Resolve Variation

DOE emphasizes that its Vaughn materials name records, families, field types, exemptions, and predicted harms. Those elements are necessary, but the repeated formulations still fail to address meaningful differences among uses. A functional category must correspond to the function of every instance assigned to it.

The complete release of governance records and the later restoration of passages show that the same general vocabulary can appear in exempt and nonexempt contexts. That fact does not discredit category methodology. It requires an explanation of how reviewers determined that each remaining placement has the protected characteristic.

The controlled copies may help the panel confirm location, but they cannot replace an agency rationale created during processing or litigation. Judicial inspection should test the explanation rather than invent it. Where DOE has adequately connected the operational relationship to 7(E), affirmance is appropriate. Where it offers only a common field name and family-level consequence, the Court should require a new entry or a new disclosure determination on remand.

Segregability Cannot Rest on the Corrected Conclusion

DOE argues that RLS-OG-002 proves its current segregability review is sound. The supplemental release proves that the agency reconsidered; it does not establish that every retained deletion now satisfies FOIA's segregability sentence. The updated declarations still must explain the review and reconcile current conclusions with the discovered passages.

Seventeen passages were restored on eleven replacement pages without altering the twelve responsive records or 200 source pages. Six pages gained two passages apiece, and five gained one. Those segments could stand after protected fields were removed. Their release confirms that passage-level separation was feasible across records previously described more categorically.

The district court accepted the renewed assurance without examining what standard produced the new boundaries or whether similar administrative text remained. A remand need not accuse DOE of bad faith and need not direct any particular disclosure. It should require a documented review of titles, headings, approval text, revision history, and narrative matter, preserving any nonpublic relation properly protected under 7(E) or supported 7(F).

Voluntary Correction Is Not Being Penalized

DOE suggests that vacatur would discourage agencies from making supplemental releases. Open Grid seeks no penalty and draws no inference of misconduct. The legal consequence follows from the state of the record: once an agency changes an earlier inseparability judgment, the reviewing court must evaluate the explanation for the corrected result.

The issue would be different if the declarations described the passage-level standard, identified the categories reconsidered, and explained why remaining fragments still disclose protected relationships. Instead, several updated assertions remain generalized. The Court cannot presume completeness merely because a correction occurred.

Remand encourages careful review. DOE may reaffirm a withholding with a sufficient account, narrow it further, or release it. The process need not disclose [REDACTED—FICTIONAL DECISION CONDITION], [REDACTED—FICTIONAL RESPONSE ORDER], or any other protected field. It requires only that the agency demonstrate application of FOIA's release rule to the current, not superseded, set of deletions.

Sealing Requires Findings About Judicial Records

DOE largely agrees that the district court's access order can be considered separately. That concession supports vacatur. The lower court did not provide the material-specific explanation Company Doe requires or adequately consider public redaction as an alternative to restricting complete submissions.

The appellate pairing demonstrates feasibility. Public briefs contain the full legal positions and approved category notices. Controlled versions show only harmless semantic placements. The four controlled filings are identified individually, access is temporary and revocable, and the public docket remains intelligible. Open Grid accepts that interim arrangement while continuing to oppose any restriction broader or longer than supported findings.

A source-record exemption may inform the access analysis but does not decide it. On remand, the district court must identify the right at issue, give public notice, consider alternatives, and explain any restriction document by document. The mandate can simultaneously preserve the affirmed 7(E) relationships, avoiding the false choice between blanket sealing and operational disclosure.

A Precise Disposition Protects Every Legitimate Interest

The Court should affirm the limited 7(E) judgment for nonpublic decision-tree trigger, order, escalation, and implementation relationships. It should vacate categorical 7(F), require DOE to connect any renewed safety claim to expected harm to an individual, and vacate segregability for a documented passage-level review.

The Court should also vacate the district court's broad sealing order. Any renewed restriction must rest on findings about a specified judicial record and consideration of a public redacted alternative. Nothing in that disposition requires release of a detail sustained under 7(E), prevents a lawful 7(F) showing, or disables a narrowly supported access restriction.

DOE's alternative request for entry-specific remand differs mainly in terminology. Vacatur is necessary because the existing conclusions cannot remain the operative adjudication while the agency or district court supplies the missing analysis. A bounded mandate can state exactly which ruling is affirmed and which three subjects return for further proceedings.

Conclusion

This synthetic appeal presents no demand for an authentic cyber instruction. Its public notices convey field categories only. The Court can protect the adequately described operational decision-tree relationships and still enforce the distinct requirements governing safety withholdings, segregability, and access to filed judicial materials.

Open Grid respectfully requests affirmance under 7(E) for the supported nonpublic trigger relationships, response ordering, escalation structure, and implementation details. It requests vacatur and remand as to categorical 7(F), segregability, and overbroad district sealing, with an express direction that no remand disclosure override the sustained 7(E) protection.

Tamsin Roe and Leo Marr certify that this public reply contains only authorized fictional notices, no inert controlled label, and no authentic system or personal information. It was served through the synthetic docket on Corin Pell on May 4, 2026. The corresponding controlled brief matches the page subjects while using independently composed prose.